

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, SEPTEMBER 1, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**CAPITAL ONE, N.A. vs. EMERSON PAYUMO
Case No. CL25-10147**

Motion to Judgment on the Pleadings

TENTATIVE RULING

Plaintiff CAPITAL ONE, N.A.'s unopposed Motion for Judgment on the Pleadings is GRANTED. Judgment shall enter against the Defendant EMERSON PAYUMO in the principal sum of \$11538.79, plus court costs of \$501.00, for a total judgment of \$12,039.79.

**ESTHER PRYOR vs. JOHN SILVA
Case No. CU24-07774**

Motion for Entry of Judgment

TENTATIVE RULING

The unopposed motion for entry of judgment is granted, subject to the following adjustments from the proposed order submitted by Plaintiff for this motion:

1. The judgment itself cannot be recorded to effectuate the conveyance of title rights held by the Defendant to the Plaintiff. Instead, should Defendant fail to appear and sign in the presence of a notary public a conveyance deed within a reasonable time after notice of entry of this order, the court will appoint an

Elisor to sign such a conveyance deed. Blueberry Properties, LLC v. Chow (2014) 230 Cal.App.4th 1017, 1020-1021; Solano County Local Rule 17.6.

2. The Referee will not be discharged and his bond exonerated until his distribution to Defendant of the net amount to which Defendant is entitled under the terms of the Stipulation earlier signed by the parties.

Plaintiff is to amend the proposed order to reflect these new terms.

**JEFF OSUNA; ET AL. vs. RIVER DELTA UNIFIED SCHOOL DISTRICT; ET AL.
Case No. CU24-09522**

Demurrer to Third Amended Complaint;
Motion to Strike Portions of Third Amended Complaint

TENTATIVE RULING

Demurrer

Defendants' unopposed demurrer to the third amended complaint is sustained without leave to amend.

"[S]tates and state officers sued in their official capacity are not considered persons under section 1983 and are immune from liability under the statute by virtue of the Eleventh Amendment and the doctrine of sovereign immunity." (*Venegas v. County of Los Angeles* (2004) 32 Cal.4th 820, 829, italics in original.) A California school district is considered an arm of the state for purposes of the 11th Amendment and shares the State's immunity from suit under section 1983. (*Kirchmann v. Lake Elsinore Unified Sch. Dist.* (2000) 83 Cal.App.4th 1098, 1115.) When an entity enjoys Eleventh Amendment immunity under section 1983 in federal court, it enjoys the immunity in state court as well. (*Id.* at 1103-1104.) This Eleventh Amendment immunity applies to suits against states for failure to comply with the Americans with Disabilities Act. (*Bd. of Trs. v. Garrett* (2001) 531 U.S. 356, 360.)

All of Plaintiffs' claims against Defendants are barred. Defendant River Delta Unified School District is an arm of the state for purposes of the 11th Amendment and Defendants Wright, Lamera, and Cornelson have been sued in their official capacities. To the extent that Plaintiffs intended to sue Defendants Wright, Lamera, or Cornelson in their individual capacities, Plaintiffs have not alleged any conduct performed outside of their official capacities that might allow for personal liability.

Plaintiffs have not met their burden of showing "in what manner [they] can amend [their] complaint and how that amendment will change the legal effect of [their] pleading." (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990)

219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens' Inst. Int'l* (1989) 212 Cal.App.3d 1393, 1408.)

Motion to Strike

In light of the court's ruling on the demurrer, the motion to strike is moot.

NORMAN ROSS DEYOUNG vs. KAISER FOUNDATION HEALTH PLAN, MEDICAL INC.; ET AL. Case No. CU25-10946

KAISER's Motion to Compel Arbitration

TENTATIVE RULING

Defendants KAISER FOUNDATION HEALTH PLAN, INC., THE PERMANENTE MEDICAL GROUP, and KAISER FOUNDATION HOSPITALS (together "KAISER") move to compel arbitration of self-represented Plaintiff NORMAN ROSS DEYOUNG JR.'s complaint relevantly alleging (1) violation of the Confidentiality of Medical Information Act, (2) medical negligence, (3) patient abandonment, and (4) intentional infliction of emotional distress.

At the May 27, 2026 hearing on this motion the court was informed that Plaintiff is in custody in connection with a criminal case and was declared incompetent to stand trial. The court is concerned that KAISER's service of notice of this motion on Plaintiff's home address on May 14, 2026 was not sufficient, despite that address being listed on the complaint, because Plaintiff may have been in custody at that time. Further, as Plaintiff not only appears not to have notice of this hearing but appears not competent to continue to represent himself at this time, the court finds that it is not presently appropriate to rule on KAISER's motion to compel arbitration.

This matter is continued to January 12, 2027 at 9:00 A.M. in Department 7. The court will rule on the motion to compel arbitration at that time if KAISER demonstrates that Plaintiff received proper notice of the motion and is again competent to litigate this case.

EBONAE WEBB vs. PACE SOLANO INC. Case No. CU26-00230

Motion to Compel

TENTATIVE RULING

Defendant PACE SOLANO's unopposed Motion to Compel is GRANTED. Plaintiff EBONAE WEBB shall serve full and complete verified responses without objections to

Defendant's Form Interrogatories, Set One, Special Interrogatories, Set One, and Requests for production of Documents, Set One, within 14 days of service of the Court's Order.

The Requests for Admission propounded by Defendant in Requests for Admission, Set One, to Plaintiff EBONAE WEBB shall be deemed admitted, pursuant to Code of Civil Procedure section 2033.280.

Plaintiff EBONAE WEBB pay sanctions in the amount of \$960.00 in favor of Defendant, pursuant to Code of Civil Procedure sections 2030.290, subdivision (c), and 2031.300, subdivision (c), and 2033.280, subdivisions (b) & (c), within 14 days of service of the Court's order.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

Meeting ID: 161 155 4664

Passcode: 818575

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